

NOR12CF0578 NOR12CF0578

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Case Number: NOR12CF0578 Hearing Date: September 3, 2026 Dept: Y

NOR12CF0578: GCFS INC vs DIAZ, BENJAMIN

Tentative Ruling:

Defendant Benjamin Diaz's Motion to Vacate and Set Aside Renewal of Judgment, Recall and Quash Any Writs of Execution, And Return Any Property Levied Upon ("Motion") was initially set for hearing on August 7, 2026. On its own motion, and with the agreement of the parties, the Court continued the hearing on the Motion to September 3, 2026 to fully review the briefs filed by the parties and the cases cited therein, and to allow argument by the parties.

The Court has read and considered the moving papers filed by Defendant, including the separately filed declarations and attached exhibits, the Opposition filed by Plaintiff GCFS, Inc. ("Plaintiff"), including separately filed declarations and exhibits, Plaintiff's Request for Judicial Notice, and the Reply filed by Defendant along with supplemental declarations. The Court has also considered all relevant court records.

Request for Judicial Notice

Pursuant to Evidence Code § 452(d), Plaintiff's Request for Judicial Notice is GRANTED as to the state-court records comprising the judgment and renewal papers, including the summons, proof of service, complaint, request for entry of default, judgment, application for renewal, notice of renewal, and proof of service of the renewal.

As for the federal bankruptcy docket pages, Plaintiff's Request for Judicial Notice is GRANTED IN PART only to the extent of noticing the existence and facial contents of the records, and DENIED to the extent offered to prove disputed facts (including Defendant's residence or "usual mailing address" at any relevant time). Evid. Code §§ 452, 453.

Evidentiary Objections

Plaintiff's blanket request to exclude all extrinsic evidence outside of the judgment roll is OVERRULED for purposes of this motion. This is a direct attack on enforcement/renewal predicated on the lack of personal jurisdiction due to defective service and thus, the Court may consider competent, extrinsic evidence on that issue. As noted above, to the extent that Plaintiff or Defendant offer judicially noticed materials for the truth of disputed factual assertions (e.g., residence/usual mailing address), the Court considers them only for existence and facial content, not for the truth of disputed matters.

Defendant's Motion to Vacate Renewal of Judgment (CCP § 683.170)

In his Motion, Defendant requests that the Court issue an order vacating and setting aside the Renewal of Judgment entered against him pursuant to Code of Civil Procedure ("CCP") § 683.170(b) and Fidelity Creditor Service, Inc. v. Browne (2001) 89 Cal.App.4th 195 ("Fidelity") on the grounds that the underlying default judgment is void because Plaintiff never served Defendant with the summons and complaint and therefore, the Court did not have personal jurisdiction over Defendant when the default judgment was entered in 2012, which is grounds to vacate the renewal of judgment in 2021.

Procedural Background

Plaintiff filed this limited civil collections action on February 23, 2012. On March 23, 2012, Plaintiff filed a proof of substituted service stating that on March 10, 2012, the summons and complaint was left with "Mayra Gamboa, Resident," at 9509 Walnut Street, Bellflower, California 90706. The process server's declaration of reasonable diligence reported an occupant's statement that Defendant "does not live here, but receives mail and picks it up." Default judgment was entered on June 5, 2012.

On August 11, 2021, Plaintiff filed an Application for and Renewal of Judgment and Memorandum of Costs After Judgment, Acknowledgment of Credit, and Declaration of Accrued Interest. Plaintiff filed a proof of service stating the renewal application was served by mail on Benjamin Diaz at 8637 Garden View Avenue, South Gate, California. On August 12, 2021, the Clerk issued the Notice of Renewal of Judgment. Plaintiff filed a proof of service stating the Notice of Renewal was served by mail on Defendant at the same address.

A writ of execution issued November 1, 2022, in the amount of \$17,488.21; a second writ issued September 8, 2023, in the amount of \$18,876.20; and a third writ issued February 16, 2024, in the amount of \$19,653.69.

On August 5, 2024, GCFS, Inc. assigned the judgment to Absolute Resolutions Investments, LLC. A fourth writ of execution issued February 9, 2026, in the amount of \$22,796.15.

Defendant filed the instant motion on July 10, 2026.

Summary of the Parties' Arguments

Defendant moves to vacate and set aside the 2021 renewal of judgment under CCP § 683.170 on the ground that the underlying 2012 default judgment is unenforceable because the court lacked personal jurisdiction due to defective service of summons. Defendant contends the March 2012 substituted service at 9509 Walnut Street ("Walnut Address") did not comply with CCP § 415.20(b) because that address was not his dwelling, usual place of abode, or usual mailing address, and he never received the summons and complaint. Defendant argues the process server's return presumption (Evid. Code, § 647) is rebutted by credible declarations and corroborating documents showing he resided and received mail elsewhere.

Defendant also argues the motion is timely because the Notice of Renewal was not mailed to his correct address as required by the Enforcement of Judgments Law (including CCP § 684.120), so the statutory period to move to vacate did not begin to run.

Plaintiff opposes the motion, arguing the 2012 default judgment and 2021 renewal are facially valid and that substituted service complied with CCP § 415.20(b), supported by the registered process server's proof of service and the presumption of proper service under Evidence Code § 647. Plaintiff contends Defendant's extrinsic evidence should be excluded and that the Court's review should be confined to the judgment roll in assessing the validity of the default judgment.

As to the renewal, Plaintiff argues it timely renewed the judgment under CCP section 683.150 and properly served the renewal notice by mail, and that actual receipt is not required. Plaintiff further argues Defendant's motion is untimely and/or fails to establish when Defendant learned of the judgment. Plaintiff also contends that if the judgment is not void on its face, Defendant must satisfy equitable set-aside requirements, including diligence and a meritorious defense, which Plaintiff argues Defendant has not shown. Plaintiff requests judicial notice of the judgment roll and renewal documents and relies on additional records (including bankruptcy docket materials) to support its position regarding Defendant's address history and the reasonableness of Plaintiff's service efforts.

Legal Standard

A renewal of judgment may be vacated on any ground that would be a defense to an action on the judgment. (CCP § 683.170.) Lack of personal jurisdiction due to defective service of summons is such a defense and may be raised via a motion to vacate renewal. (See *Fidelity*, supra, 89 Cal.App.4th 195.)

A successful motion under section 683.170 does not affect the validity of the default or the default judgment. *Fidelity*, supra, 89 Cal.App.4th at 203. A successful motion under 683.170 vacates only the renewal of the judgment thereby precluding its extended enforceability under section 683.120. *Id.* at 203-204. Moreover, section 683.170 sets forth its own timeliness requirement with respect to a motion to vacate renewal of judgment. *Id.* at 204. Timeliness of the motion runs from proper service of the notice of renewal. CCP § 683.170(b).

Timeliness of Motion

The motion is timely.

Plaintiff argues the motion is untimely because it was not filed within 60 days after service by mail of the Application and Notice of Renewal of Judgment. Defendant contends the 60-day period under CCP § 683.170(b) never commenced because the renewal papers were not served at his current mailing address, or, if unknown, his last known address as required by the Enforcement of Judgments Law, including CCP §§ 683.160 and 684.120.

CCP § 683.160 requires the judgment creditor to serve the notice of renewal personally or by first-class mail and to file proof of service. CCP § 684.120 requires service by mail to be directed to the person's current mailing address if known, or, if unknown, the last address given on any paper filed in the proceeding and served on the serving party; if neither is available, then to the last known address. Service that does not comply with § 684.120 does not trigger the 60-day period to move under § 683.170(b).

Here, Plaintiff states it mailed the Notice of Renewal on August 13, 2021 to 8637 Garden View Avenue, South Gate, CA 90280. Plaintiff asserts the Notice of Renewal was mailed on August 13, 2021 to 8637 Garden View Avenue. Defendant declares he never lived at the Garden View property, that it was an investment property rented to a third party, and that the property was lost to foreclosure in 2015. Defendant further declares he resided and received mail at 3077 Gazania Drive in August 2021 and did not receive the renewal papers. Plaintiff's opposition relies on historical bankruptcy docket listings reflecting the Garden View address years earlier, but identifies no post-2015 evidence that Garden View remained a valid mailing address in 2021. Defendant's reply emphasizes that Plaintiff offers no competent evidence the Garden View address satisfied § 684.120 in 2021 and that the foreclosure occurred six years before the mailing.

Plaintiff has not demonstrated compliance with § 684.120. Mailing renewal papers to an outdated address that ceased to be associated with Defendant after a 2015 foreclosure does not satisfy the "current mailing address if known" or the "last known address" standard, absent competent evidence that it remained Defendant's last known address as of August 2021. Because service of the notice of renewal did not comply with §§ 683.160 and 684.120, the 60-day period under § 683.170(b) did not begin to run.

Ruling on Motion to Vacate Renewal of Judgment

While the proof of service by a registered process server constitutes presumptive evidence of service (Evid. Code § 647), that presumption is rebuttable and does not prevail where credible evidence establishes the statutory prerequisites were not met. See Evid. Code § 604; *Bonzer v. City of Huntington Park* (1993) 20 Cal.App.4th 1474.

Here, Defendant presents admissible and credible evidence rebutting that the 2012 substituted service was effected at Defendant's "dwelling house, usual place of abode, usual place of business, or usual mailing address" within the meaning of CCP § 415.20(b).

On this evidentiary record, the Court finds that Plaintiff has not carried its burden to establish that the Walnut Address was Defendant's dwelling, usual abode, or usual mailing address at the time of service, and therefore, the 2012 service did not comply with section 415.20(b) and did not confer jurisdiction.

Accordingly, Defendant's Motion is GRANTED. The Court finds Defendant has met his burden to show the 2012 service did not comply with CCP § 415.20(b) and therefore did not confer personal jurisdiction. Accordingly, the renewal of judgment is VACATED AND pursuant to CCP § 683.170.

The Court also recalls and quashes the Writs of Execution that were issued on November 1, 2022, September 8, 2023, February 6, 2024, and February 9, 2026.

Moving Party to give notice.